# CHSS Commitment to Student Data Privacy and Security

This commitment has three parts. Part A states how CHSS will work with the National Data Privacy Agreement. Part B is Appendix A, CHSS's own privacy and security terms, which apply where a district does not use the NDPA and which track its structure. Part C is the system specification a district's technology office reads before signing.

## Part A: NDPA posture statement

The Center for High School Success (CHSS), a program of Stand for Children Leadership Center, Inc., will execute the Student Data Privacy Consortium's National Data Privacy Agreement (NDPA), including any state-specific version and exhibits adopted in the District's state, on request from any partner district or its privacy consortium. [CHSS expects, subject to confirmation by its counsel, to sign the General Offer of Privacy Terms (NDPA Exhibit E) with the first executed NDPA in each state and to provide the originating district a standalone copy for the SDPC Resource Registry, so that other districts in that state may subscribe to the same terms by accepting Exhibit E and delivering notice of acceptance.]

For purposes of the NDPA: the **Provider** is Stand for Children Leadership Center, Inc. (CHSS program); the **Service** is CHSS Navigator and the ninth grade success coaching it supports; **Provider staff** include CHSS coaches, who are bound by the agreement and trained accordingly. CHSS does not operate a student-facing application other than the Belonging and Skills screeners administered through the District's School Team.

Appendix A (Part B) applies in every case. Where a district has executed the NDPA, or accepted Exhibit E, the NDPA and its state exhibits control as to any conflict, and Appendix A continues as a supplement for every matter the NDPA does not address.

## Part B: Appendix A, Data Privacy and Security

### A.1 Definitions

Terms defined in Sections Five and Six of the Agreement (Student Data, Screening Data, De-identified Data, Aggregate Data, Navigator, School Team, Coach, Cohort) have the same meaning here. **Subprocessor** means a third party that hosts or processes Student Data on CHSS's behalf.

### A.2 Purpose and legal basis

CHSS receives Student Data solely to provide the Services described in the Agreement. The District designates CHSS as a school official with a legitimate educational interest under 34 C.F.R.

§ 99.31(a)(1)(i)(B). CHSS is under the District's direct control with respect to the use and maintenance of education records and is subject to the redisclosure limits of 34 C.F.R. § 99.33. CHSS will comply with FERPA; with the Protection of Pupil Rights Amendment (20 U.S.C. § 1232h) as it applies to screeners; with the Children's Online Privacy Protection Act (15 U.S.C. §§ 6501–6506) to the extent it applies; and with the student privacy laws of the District's state listed in the State Exhibit, as if CHSS were the District.

### A.3 Ownership and control

All Student Data and Screening Data, and all records CHSS creates or receives on the District's behalf, are and remain the property of the District. The District retains exclusive control over its Student Data, including who may access it and for what purposes. CHSS acquires no rights in Student Data other than the limited license to use it to provide the Services.

### A.4 Authorized and prohibited uses

CHSS will use Student Data only to provide the Services and as instructed by the District. CHSS will not: (a) sell, rent, or trade Student Data; (b) use Student Data for targeted advertising or marketing to students, parents, or staff; (c) build a profile of a student for any purpose other than the Services; (d) use Student Data in any advocacy, lobbying, political, or fundraising activity of Stand for Children Leadership Center, Inc. or any affiliated entity, including any entity organized under section 501(c)(4); (e) disclose Student Data to any third party other than a Subprocessor listed under A.6, except as required by law and, where lawful, with prior notice to the District; or (f) share Student Data with any program partner, evaluator, funder, certifying body, or sponsor unless the recipient and the data shared are named in Exhibit D-3 of the Agreement and approved by the District in writing.

### A.5 Data minimization

CHSS will collect only the elements listed in Exhibit D-1 of the Agreement and will not require the District to provide more data than is reasonably necessary to deliver the Services. CHSS will not request Social Security numbers, government identification numbers, payment information, or health records, and will receive disability-related status only where the District elects to provide it under Exhibit D-1. Changes to the element list require the District's written agreement.

### A.6 Subprocessors

CHSS uses the following Subprocessors, each bound by written terms at least as protective as this Appendix:

| Subprocessor | Function | Location |
|---|---|---|
| Microsoft (Azure, Fabric) | Cloud hosting, data lake, data warehouse, API management | United States |

| Subprocessor | Function | Location |
|---|---|---|
| Salesforce (Experience Cloud, CRM Analytics) | Navigator user platform, student records and intervention workflows | United States |
| Microsoft (Power BI) | Analytics and reporting | United States |
| [AI model provider] | File-mapping assistance, data validation, intervention recommendations | United States |

CHSS will give the District at least thirty days' written notice before adding or replacing a Subprocessor that will process Student Data. The District may object in writing, and the Parties will work in good faith to resolve the objection before the change takes effect. If the objection is not resolved before the change takes effect, the District may require CHSS to exclude its Student Data from the new Subprocessor, disable the affected feature for the District, or terminate the data provisions of the Agreement without penalty, and CHSS will return or destroy the District's Student Data under A.10.

CHSS does not share Student Data with any program partner, evaluator, funder, certifying body, or sponsor. Any such recipient must be named in Exhibit D-3 of the Agreement with the data to be shared and approved by the District in writing before any disclosure.

### A.7 Security program

CHSS maintains a written information security program with administrative, technical, and physical safeguards appropriate to the sensitivity of Student Data, including at minimum:

- **Encryption.** Student Data is encrypted in transit (TLS 1.2 or higher) and at rest (AES-256 or equivalent). File transfers use SFTP or an HTTPS secure upload; email is never used to transfer Student Data.
- **Access control.** Role-based access on the principle of least privilege. Multi-factor authentication for all CHSS staff and administrator accounts. The identity of every person with access to Student Data is documented, reviewed at least quarterly, and removed within one business day of role change or separation.
- **Logging.** Every system access to student-level records by a logged-in user, and every administrative and maintenance action, is logged with user, time, and record; logs are protected from alteration and retained for at least twelve months. On written request, CHSS will provide the District with log data for end-user, administrative, and maintenance activity relating to its Student Data. For Coaches under Option B, who hold no login, CHSS keeps the coaching-session record described in Section 5.4 of the Agreement in place of a system log.
- **Passwords and sign-on.** Stored passwords are salted and hashed; passwords are never visible to CHSS staff; single sign-on is supported for District users where the District elects it.
- **Infrastructure.** Production environments are segregated from the public internet by firewall and network controls; critical security patches are applied within seven days of release; anti-

malware is current on all endpoints with access to Student Data; backups are encrypted and tested.

- **Secure development.** Changes to Navigator and the data platform go through code review and testing; secrets are managed in a vault, never in code.
- **Personnel.** All CHSS staff with access to Student Data, including Coaches, pass a background check before access is granted, complete privacy and security training at hire and annually, and sign confidentiality obligations. [Subject to CHSS confirmation of current practice; Decisions O5.]
- **Authorized technical and security personnel.** A small, named set of CHSS technical staff may access Student Data to administer the platform, resolve data-feed problems, and investigate incidents, on a minimum-necessary and time-limited basis, with multi-factor authentication, logging of every access, confidentiality obligations, and quarterly review of the roster. No other CHSS program, research, or leadership staff access identifiable Student Data.
- **Independent assessment.** CHSS undergoes an independent third-party assessment of its security controls at least annually (SOC 2 Type II or an equivalent independent audit) and an annual penetration test of Navigator and the data platform. Summaries are available to the District under A.13.
- **Incident response.** CHSS maintains and tests an incident response plan covering assessment, containment, evidence preservation, notification, recovery, documentation, and post-incident review.

### A.8 Breach notification

If CHSS becomes aware of unauthorized access to, or acquisition, disclosure, or loss of, Student Data, whether or not it meets a statutory definition of breach (a "Breach"), CHSS will notify the District's privacy contact without unreasonable delay and in no event later than seventy-two hours after confirming the Breach, unless notification within that time would disrupt a law-enforcement investigation, by telephone and email, with the information then known: the nature of the Breach, a description of the Student Data involved, the students affected, steps taken to contain it, and a point of contact. CHSS will update the District as the investigation proceeds, cooperate fully, and comply with any breach-notification law applicable to the District's data. The District decides whether and how affected students and parents are notified; CHSS will not notify students, parents, or the public without first consulting the District, except where law requires otherwise. CHSS will bear the reasonable costs attributable to its Breach, including parent notification, credit monitoring where offered, forensic investigation, legal fees, and regulatory fines.

### A.9 Data location

Student Data is stored and processed only in data centers located in the United States. CHSS will not transfer Student Data outside the United States without the District's prior written consent.

### A.10 Retention, de-identification, and destruction

- **During the term.** CHSS retains Student Data only as long as needed to provide the Services.
- **On request.** On the District's written directive at any time, CHSS will return or destroy the Student Data specified within sixty days, on a schedule agreed with the District. The District may use the NDPA's Directive for Disposition of Data (Exhibit D) for this purpose with no further notice required.
- **On termination.** Within sixty days after the Agreement ends, CHSS will destroy or return to the District all Student Data and Screening Data, including copies held by Subprocessors, and will certify destruction in writing signed by an officer. Copies in encrypted backups expire on the documented rotation, not to exceed ninety days, are never restored to production, and are certified as expired when that date passes.
- **De-identified and Aggregate Data.** CHSS may create De-identified Data in accordance with NIST de-identification standards or U.S. Department of Education guidance, by removing direct and indirect identifiers and replacing the student identifier with a random token that is not derived from any student identifier or other personal information, under a key that CHSS destroys with the identifiable data. Before retaining or releasing any De-identified Data, CHSS will make and document the reasonable determination required by 34 C.F.R. § 99.31(b)(1) that a student's identity is not personally identifiable, considering direct and indirect identifiers, other reasonably available information, the cumulative risk of repeated releases, and the need for complementary suppression, and will provide that record to the District on request. Aggregate Data is a subset of De-identified Data. CHSS may retain De-identified Data and Aggregate Data after termination to evaluate and improve the program, including following Cohort outcomes over time. CHSS will not attempt to re-identify any student and will not transfer De-identified Data to any third party other than a Subprocessor unless that party agrees in writing not to attempt re-identification and the District has given prior written consent. Aggregate Data will suppress any cell smaller than ten students.
- **Research and publication.** CHSS may publish findings based on De-identified Data and Aggregate Data. No publication will identify a student. CHSS will not identify the District in any publication without the District's prior written consent and will provide the District a copy of any report that includes the District's aggregate results at least fifteen business days before publication. The District may always see its own data.

### A.11 Parent and eligible student rights

Requests by a parent or eligible student to inspect, review, or correct education records are handled by the District. CHSS will support the District by providing, within ten business days of request, the Student Data it holds about the student, and will correct or delete data as the District directs.

### A.12 Use of artificial intelligence

CHSS uses automated and machine-learning tools within the data platform to assist with mapping incoming files to a common format, to flag data-quality problems, and to suggest interventions for

the School Team's consideration. CHSS commits that: (a) neither CHSS nor any Subprocessor will use Student Data, De-identified Data, or any output derived from them to train, fine-tune, evaluate, or otherwise improve any machine-learning model, or to develop synthetic or inferred data for any purpose other than delivering the Services to the District; (b) the Services may generate student-specific inferences solely to deliver the Services, and such inferences are Student Data for all purposes of this Appendix; (c) each model provider is listed as a Subprocessor with the product tier used, the provider's data-use terms by URL and date, and the country of processing, is contractually prohibited from retaining or training on Student Data, and CHSS will provide the provider's written attestation on request; (d) intervention suggestions are recommendations for educators, who make all decisions about students, and are never the sole basis for any decision with a material effect on a student; (e) no Subprocessor personnel view prompts or outputs containing Student Data except as disclosed to the District in writing; (f) the District may request that AI-generated recommendations be disabled for its schools; (g) CHSS will give thirty days' written notice before adding or changing a model provider, and the District has the remedies in A.6; (h) CHSS will complete the District's AI questionnaire (for example, Arizona NDPA Exhibit G) on request; and (i) on request, CHSS will describe which data elements are sent to each model provider and at which step, whether the model is operated by CHSS or by a third party, and which CHSS or Subprocessor personnel can see model inputs and outputs, and will demonstrate the platform to the District's technology staff.

### A.13 Audit and assurance

On request, not more than once per year unless a Breach has occurred, CHSS will provide the District with any of the following at the District's election: a completed security self-assessment, responses to the District's security questionnaire within thirty days, its most recent independent assessment report (SOC 2 Type II, SOC 3, or equivalent) and penetration test summary under a confidentiality agreement, a description of its security program, and a certificate of insurance. If the District's state law or policy requires an audit right, CHSS will cooperate with an on-site or remote audit at a mutually agreed time, conducted so as not to compromise other districts' data.

### A.14 Insurance

CHSS maintains, and will provide certificates on request for: cyber liability insurance of at least $2,000,000 per claim and in the aggregate, covering security and privacy liability, crisis management, network extortion, and media and content liability, maintained for two years after this Appendix ends; commercial general liability of $1,000,000 per occurrence and $2,000,000 aggregate; and professional errors and omissions liability of $1,000,000 per claim. A requirement may be met through self-insurance only where CHSS documents the program and its claims-paying capacity and the District accepts it in writing. [Limits pending Stand's certificate; Decisions O7.]

### A.15 Screening Data

Screening Data is collected by CHSS only after the District has approved the instruments and provided any required notice under Section 6.7 of the Agreement. Screening Data is subject to every protection in this Appendix. Student-level screening results are visible to the School Team and to the Coach on the terms of the option elected under Section 5.4; CHSS program and research staff see only De-identified and Aggregate Screening Data.

### A.16 Term, termination, and survival

This Appendix is coterminous with the Agreement and continues until all Student Data has been returned or destroyed under A.10. Sections A.3, A.4, A.8, A.10, and A.11 survive termination. The District may suspend data transfers and CHSS's access to its Student Data immediately, by notice to CHSS's privacy contact, when the District reasonably determines that suspension is necessary to protect Student Data, and may terminate the data provisions of the Agreement on thirty days' written notice if CHSS materially breaches this Appendix and does not cure within that period, or immediately for a breach that cannot be cured or that recurs. Suspension or termination of the data provisions suspends the Services that depend on Student Data; if those Services cannot lawfully continue, the District may terminate the Agreement without penalty, and CHSS will return or destroy Student Data under A.10. This Appendix does not renew automatically; continuation of Student Data sharing beyond the Agreement's term requires a new written agreement signed by both Parties.

### A.17 Governing law and State Exhibit

This Appendix is governed by the laws of the District's state. The State Exhibit attached for the District's state sets out additional required terms, including: for Ohio, compliance with Ohio Revised Code 3319.321, 3319.325 through 3319.327, and Chapter 1347 (including breach notification under R.C. 1347.12) as if CHSS were the District, whether or not CHSS falls within the statutory definition of a technology provider; for California, the terms required by Education Code § 49073.1 and Business and Professions Code § 22584; for Arizona, Arizona NDPA Exhibit G including the AI questionnaire, the screener consent requirements of A.R.S. §§ 15-104 and 15-117, and the District's determination under Section 6.7 of the Agreement whether the Belonging Screener may be administered at all; and for Missouri, Massachusetts, Utah, and other states, the state NDPA exhibit where one exists.

### A.18 Order of precedence

This Appendix applies in every case. If this Appendix conflicts with the Agreement, this Appendix controls as to Student Data. If the District has executed the NDPA with CHSS or accepted Exhibit E, the NDPA and its state exhibits control as to any conflict with this Appendix, and this Appendix continues to apply as a supplement for every matter the NDPA does not address.

## Part C: System specifications (district-facing)

*Readiness: each statement below is confirmed by CHSS's technology office before this page is shared with a district. Statements not yet confirmed carry a completion date in brackets.*

**Platform.** CHSS Navigator is a web application delivered on Salesforce Experience Cloud, backed by a CHSS data platform on Microsoft Azure and Microsoft Fabric. All environments are hosted in United States regions.

**How data moves.**

1. The District transfers files (CSV, TXT, or Excel) to CHSS by SFTP on a schedule, or uploads them through the CHSS secure portal. Email is never used.
2. Files are virus-scanned and validated on receipt, mapped to a common data model, checked for quality (type, completeness, anomalies), and loaded to the data lake and warehouse with an audit record.
3. Student records are matched by the District's student identifier (and state identifier where provided). Probabilistic matching is used only to flag possible duplicates for human review, never to link records automatically.
4. On-track indicators, course-failure flags, and attendance measures are computed and published to Navigator for the School Team.
5. A separate de-identification step produces tokenized research datasets, which are the only datasets CHSS program and research staff use.

**Who can see what.** Role-based access in Navigator: school users see their school's students; district users see their district; Coaches hold no login and see student-level data only in sessions on a School Team member's screen (Option B), or hold a logged login to their schools where the District has elected Option A; a small, named set of CHSS technical staff have minimum-necessary, logged access to administer the platform and investigate incidents; CHSS program and research staff see de-identified and aggregate data only. Every access to a student-level record is logged.

**Security controls.**

- Encryption in transit (TLS 1.2 or higher) and at rest (AES-256).
- Multi-factor authentication for all CHSS accounts; single sign-on available for District users.
- Least-privilege, role-based access; documented access roster reviewed quarterly; access removed within one business day of separation.
- Access and administrative logging retained twelve months and available to the District on request.
- Production segregated from the internet by firewall and network controls; critical patches within seven days; anti-malware on all endpoints; encrypted, tested backups.
- Background checks and annual privacy training for all staff with access, including Coaches.
- Independent security assessment annually (SOC 2 Type II or equivalent) and an annual penetration test; summaries available on request. [First assessment scheduled for completion

by: date.]

- Written, tested incident response plan; the District is notified within seventy-two hours of a confirmed breach.

**Subprocessors.** Microsoft (Azure, Fabric, Power BI), Salesforce (Experience Cloud, CRM Analytics), and [AI model provider]. All U.S.-hosted, all under written terms at least as protective as CHSS's agreement with the District. The District receives thirty days' notice of any change.

**Artificial intelligence.** Used for file-mapping assistance, data-quality checks, and intervention suggestions presented to educators. Student Data, de-identified data, and outputs derived from them are not used to train, fine-tune, evaluate, or improve any model, by CHSS or any subprocessor; the only inferences generated are to deliver the Services to the District, and they are treated as Student Data. Recommendations can be disabled at the District's request.

**Retention.** Identifiable data is held only for the term of the agreement, destroyed or returned within sixty days of termination or of a written directive, with written certification; backups expire on a documented rotation of no more than ninety days. De-identified and aggregate data may be retained for program evaluation; no re-identification.

**Insurance.** Cyber liability $2,000,000 per claim and aggregate; general liability $1,000,000 per occurrence and $2,000,000 aggregate; professional errors and omissions $1,000,000. Certificates on request.

**Agreements.** CHSS signs the National Data Privacy Agreement (any state version) or provides Appendix A to the same standard, and provides an executed copy and a ninety-day expiration notice.